

VOL. 04 · 16 JULY – 25 AUGUST · MMXXVI

A documentary record of six weeks in which the fronts finally went into the room — a Court of Appeal, a three-day employment hearing, a criminal docket the operator now argues in person — while the deed that saved the company was signed, a tower sale slid into jeopardy, a new brand was born, and the machine wrote hearing bundles by night.

Into the room.

Three volumes of this record watched the fronts being built — the filings, the bundles, the counter-campaigns. These six weeks, *16 July to 25 August 2026, New Zealand time*, are the volume in which the fronts finally went into the room. A Court of Appeal heard *Castra v Black* on 30 July. The Employment Relations Authority took *Duncan v Citadel* through three days of evidence in August. And on the criminal file, the operator filed notice that he acts in person — the firm's principal, arguing his own case.

The wins were real. The **Hyperion deed was executed on 27 July** — two days inside its long-stop — and by the 31st the administration was complete, control back with the board, the first instalment paid early. The tax machine returned **\$236,947 of GST to Carrack** in a single filing. Four Babich lots went to contract in one day. A new brand — **Armada** — was born on 17 July and had a password-protected website by late August. But the ledger has a debit side this volume does not soften: the \$8m Featherston sale stalled and **Castra now sits under a Property Law Act notice**; Carrack's arrears reached eleven months; and on the very day this record closes, a High Court appearance deadline on the new Terra front **expired with nothing filed**.

The machine, meanwhile, learned to fight — hearing bundles, cross-examination assessments, simulated determinations, a four-model adjudication panel — and still cannot see itself: its telemetry flickered back for a fortnight and died again, and on four weekdays of this window it produced no record at all. Drawn, as always, from every surface the programme touches, because a record that flatters is not a record.

Farhad Moinfar

Editor · Citadel · Auckland · 25 August 2026 NZT

Contents.

Six weeks, four sections, one operating layer.

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DROPBOX

GMAIL

GOOGLE DRIVE

CALENDAR

WORKSTREAM TREES

DOCTRINE CORPUS

By the numbers.

Six weeks reduced to a balance sheet.

27 Jul

**HYPERION DEED
EXECUTED**

DOCA and Castra guarantee signed two days inside the long-stop; administration complete 31 July — control back with the board.

3 days

ERA 3407924 · HEARD

Duncan v Citadel ran 18-19 August on a 297-page joint bundle. Closing submissions due 9 September; determination awaited.

30 Jul

**COURT OF APPEAL ·
HEARD**

Castra v Black Interiors (CA786/2025) argued in Auckland. Judgment reserved; no outcome on the record.

\$236,947

CARRACK GST REFUND

The July return alone. With Imperator and Telesto, \$264,673 of GST came back in the window.

4

**BABICH LOTS TO
CONTRACT**

ASPs on Lots 106, 123, 124 and 125 executed in a single day, 11 August — fifteen-day due diligence.

\$843,608

**CASTRA INTEREST · 12
SEP**

The Featherston sale stalled, and FMT wrote "without prejudice to the PLA notice." The tower is now a default front.

11 mo

**CARRACK ARREARS AT
FMT**

\$777,543 fell due 12 August and FMT removed it from direct debit. The refinance Fortis was shown has not landed.

3:00pm

**TERRA C9 · DEADLINE
BLOWN**

The creditor's appearance in IRD v Terra (CIV-2026-404-1722) was due 25 August. Nothing was filed; counsel was never instructed.

17 Jul

ARMADA IS BORN

"Novotera" killed; Armada Fields, Guild and Heritage stood up. A password-protected site was live by 24 August.

In person

**THE CRIMINAL FILE'S
TURN**

Notice filed 25 August that the operator acts for himself; the KC's \$10k retainer deferred. Case review 8 September.

12 days

TELEMETRY, ALIVE

The counter returned 20 July – 4 August (169,911 → 175,655 summaries), then went dark again. Every August slot: "unavailable."

4

**WEEKDAYS WITH NO
RECORD**

31 July, 14 and 21 August produced nothing at all; three more days managed only a morning briefing. The cadence cracked.

By the cadence.

The daily machine, and where the weight fell.

THE RECORD, KEPT AND MISSED · 29 WEEKDAYS

Full evening digest		23
Morning briefing only		3
No record at all		3
Telemetry reported		12
"sheba" reachable		0
Gmail send scope used		0

The silent weekdays — 31 July, 14 and 21 August — sit around the window's heaviest litigation.

THE CORPUS, WHILE THE COUNTER LIVED · 20 JULY → 4 AUGUST



169,911 → 175,655 summaries across the twelve working days the counter reported — dark before 20 July, dark again from 5 August.

THE WINDOW'S RECURRING RHYTHM

McLeans · CPMC weekly	Mondays
Babich site meeting	Tuesdays
Albany consultant sessions	weekly
Calendar events, 6 weeks	131
Double-booked slots	5

THE FULCRUM DAYS

27 Jul	Hyperion deed executed; DD17 approved; the Police batch fires.
30 Jul	The Court of Appeal hears <i>Castra v Black</i> , 09:00–13:00.
5–6 Aug	297-page joint bundle lodged — then halted and redacted in a day.
18–19 Aug	The ERA hearing: Duncan, Moinfar, Morley in the witness order.
25 Aug	Acting-in-person filed; the Terra C9 deadline expires unanswered.

READING THE CADENCE

The rhythm held through two hearings and a deed — but the record cracked at the edges: silent weekdays, missing digests, and a diary that triple-booked the first morning of the hearing itself.

By the docket.

Six weeks of litigation, in one ledger.

3

DAYS IN HEARING ROOMS

Court of Appeal + two ERA days.

297pp

JOINT BUNDLE

Lodged, halted, redacted, refiled.

7+

OVERSIGHT FRONTS

Ombudsman x2 · IPCA x2 · OIA · Privacy · Ministers.

2

DEMAND LETTERS BUILT

Terra served; Christchurch European staged.

THE DOCKET · WHERE EACH PROCEEDING STANDS

HEARD	Castra v Black (CA786/2025) — argued 30 July, Court of Appeal, Auckland. Judgment reserved.
HEARD	Duncan v Citadel (ERA 3407924) — 18–19 August, 66 Wyndham St. Closings due 9 September; settlement offers rejected.
LIVE	Police v Moinfar — memorandum due 1 September; case review 8 September; the operator now acts in person.
BLOWN	IRD v Terra (CIV-2026-404-1722) — Carrack's C9 appearance due 3pm 25 August; nothing filed; hearing 27 August.
SERVED	Terra negligence — demand letter out 19 August via Claymore, insurers in copy.
FILED	Norfolk & Good Unit 36 — statement of claim to the ERA, 18 August.
VACATED	Black v Castra (CIV-2025-404-3787) — High Court mention vacated 5 August.

THE DESK, MEANWHILE · WHAT GOT SIGNED

DEED	Hyperion DOCA + Castra guarantee executed 27 July; administration complete 31 July; first instalment \$8,323.93 paid early.
TAX	\$264,673 of GST refunds — Carrack \$236,947, Telesto \$23,489, Imperator \$4,237.
SALES	Four Babich ASPs (Lots 106/123/124/125) executed in one day, 11 August.
LEASE	Ryū sales-suite lease at B04/2 Munroe Lane executed 11 August — liability capped at six months' rental.
CONSENT	RYU RC lodged 29 July; accepted for processing (s88) 21 August. McLeans s223 lodged 18 August.

ONE OPERATOR, BOTH BENCHES

The window's defining fact is that the same judgement ran the docket and the desk — argued the hearing by day, signed the ASPs between sessions, and answered the Court's redaction direction the same evening. The C9 miss on 25 August is what that concentration costs when no register is watching.

Projects

01 · A CONSENT, A TENDER, A RATES WAR

McLeans Mansion.

387 Manchester Street, Christchurch · Emperor Holdings Limited · Heritage NZ Category 1



Plate i. The frontage, McLeans Mansion. This window it lodged its subdivision application, took its seismic tender to review, found its strongest anchor-tenant signal yet — and went to war with the city over a \$136,389 rates demand.

"Don Draper spec — a floor of lairs." The brief found its voice in July; by late August the mansion had a lodged subdivision, a tender in review, its strongest anchor signal yet — and a \$136,389 fight with the city.

The instrument kept advancing. On **18 August, McKenzie & Co lodged the s223 subdivision application (RMA/2026/1650)** with Christchurch City Council; the conservation covenant sits with Alexander Dorrington. The **Stage 1 seismic-strengthening tender** reached a formal Base Build Tender Review with Cuesko and CPMC on 20 August, the warm-shell take-off went to pricing, and Bealey Avenue's title date held at **28 October**.

The commercial thesis sharpened. On 28 July **Savills' Norman Engel produced a hospitality operator who may also take part of the mansion as boutique accommodation** — the strongest anchor-tenant signal the project has had. Around it: Cazador's hospitality concept, Someday Studios on the Manor, a Green Star pathway, a geothermal feasibility — and, through Mijntje Lepoutre, the opening of **mana whenua engagement** with Te Hau and an approach to Huia Reriti. By 25 August the workstream had been refiled under **Armada PropCo**, with a three-document financial run built in a single day.

"McLeans is a Category 1 constraint problem before it's a design problem." — the 24 August briefing, to a room full of designers.

And then there is the war. The city's rates demand on 387 Manchester Street — **\$136,388.56** — expired unpaid on 28 July, a 10% penalty attaching from 1 October and mortgagee-recovery language in the notice. Citadel's answer was not a cheque: Zach lodged a **section 39 objection** to the rating valuation and LGOIMA requests on both the Council and QV. The mansion's holding cost is now itself a contested proceeding.

THE ASSET

Address	387 Manchester St, Christchurch
Heritage	Category 1 (HNZ)
Rooms	53
SPV	Imperator Holdings Ltd
s223 lodged	18 Aug · RMA/2026/1650
Tender	Stage 1 · Cuesko review 20 Aug
Rates demand	\$136,388.56 · s39 objection
Bealey titles	28 Oct 2026
Filed under	Armada PropCo

THE ROOM, THE PERIOD

- Studio 11:11 · Lepoutre · Lockhart
- CPMC (Lynch, Russell) · Cuesko · BSW
- Someday Studios · Matt Liggins · Cazador
- Te Hau · Huia Reriti — mana whenua
- Savills (Engel) — the operator lead



Plate ii. The principal staircase. The seismic tender will pre-drill every fixing into this timber; the conservation covenant governs every move.

THE DISCIPLINE THE WINDOW IMPOSED

The design energy this window was extraordinary — the "Don Draper" interior brief, a pavilion, a Ghost Wall, geothermal, Green Star, an art programme. The discipline came from everywhere else: a Category 1 covenant, a tender that needs a lift decision before it can price, a rates demand with mortgagee-recovery language, and a Cuesko invoice against which the funding note read, simply, *"currently nothing in there."*

That is why the PropCo run matters more than any render. The 25 August documents priced the take-out layer, the common-area income and — pointedly — a register of every claim in the model that has no evidential basis yet. The mansion's next gate is not aesthetic: it is whether the tender, the operator lead and the PropCo arithmetic can be stood in front of a funder as one coherent position on the 8-11 September Christchurch trip.

A lodged subdivision, a tender in review, an operator lead — and a plug register naming what still has no basis. The mansion grew up this window.

02 · LODGED, ACCEPTED, QUESTIONED

RYU Albany.

60 Don McKinnon (Telesto) · 1 Munroe Lane · the Ryū sales suite · Citadel Albany masterplan



Plate iii. Aerial concept, RYU Albany — 121 Japanese-inspired units. This window the resource consent finally went in, the Council accepted it and immediately started asking questions — and the village got a physical front door: a sales suite at 2 Munroe Lane.

Five days late and blocked once on a missing owner signature, the resource consent lodged on 29 July — and on 21 August the Council accepted it for processing. Now the clock, the questions and the boundary all run at once.

The lodgement was hard-won. Targeted for ~24 July, it stalled on 20 July on a missing **written owner approval**; Bartlett KC's urban-design commentary folded in that week, and on **29 July the 60 Don McKinnon RC (LUC60468926) lodged**. On **21 August the Council accepted it under s88** — 22 working days on the clock. The questions came fast: RFIs on 20 August, a formal **s92 request on the 25th**, and an interim processing invoice (~46 pages of ten-minute timesheets) that Citadel, on advice, resolved to **pay nothing against until a decision issues**.

In parallel a second instrument opened: a **boundary adjustment** folding the 60 Don McKinnon landscaping onto 1 Munroe Lane — Marc Peterson's overlay mark-ups on 20 August, and a strategy session set for 26 August with Bartlett KC, Tattico, BSW and RMMLA in the room. Bartlett's standing question — *what do "permissive" height controls actually mean here?* — is still the sharpest one on the file.

The consent is in the machine. From here the project's speed is set by Council questions — and by how fast the consultants get paid.

The village also got a front door. The Ryū **sales suite at B04/2 Munroe Lane** went from adverse Chapman Tripp counter (4 August) to liability capped at six months' rental (7 August) to an **executed lease on 11 August**; Goodform is on furniture, the Resene palette signed off, and RenderStudio's sixteen white-card cameras ran three review sessions. Tattico and Transurban were paid square on 17 August; the July invoice set waits its turn.

ALBANY CARD

RC · LUC60468926	Lodged 29 Jul
s88 accepted	21 Aug · 22 wd clock
RFIs / s92	20 Aug · 25 Aug
Units	121 · Japanese-inspired
Boundary adj.	Strategy · 26 Aug
Sales suite	Lease executed 11 Aug
Whitecards	16 cameras · RenderStudio

THE ENTITY LEDGER

Telesto · monthly	\$9,500 · landing
Pasargard · 10 Aug	\$5,000 · failed
Final option fee	10 Sep · + condition
Render deposit	\$8,625 · Ryu-01
Invoices moving to	Tridentis Capital



Plate iv. Watercolour masterplan. The drawing the project sells.



Plate v. Evening courtyard. The atmosphere the village promises — against the precinct objectives it must thread.

The watercolour is no longer the whole story. The village now exists as a lodged application with a statutory clock, a leased showroom being fitted in Resene Parchment, sixteen camera angles at white-card, and a furniture brief with Goodform. The risk has moved with it: from "will it lodge" to "what will the Council's questions cost" — the s92 request landed the day this record closes — and to the quieter entity discipline underneath, where a \$5,000 Pasargard instalment failed in August and the final option payment, with its condition, falls due on 10 September.

03 · THE REBALANCE CAMPAIGN

Babich Rise.

125-lot subdivision, Henderson Valley · Carrack Capital Limited · FMT + Capital Group



Plate vi. Babich Rise from drone. This window the uplift stopped being a number and became a campaign: a locked stocklist, a rebalance paper to the funders, Drawdown 17 approved, four lots to contract in a day — against arrears that reached eleven months.

Citadel stopped asking for a refinance and built a case for a rebalance — a locked baseline, a certified funding pack revised past rev Z, and a standing argument to Capital Group: rebalance the facility when the titles and revenue land.

The campaign was fought in documents. On **20 July the stocklist baseline was locked** — SHA-256-stamped, so every later model reconciles to one truth. On **21 July the FMT-CG rebalance paper** went up: not a partial refinance but a rebalancing of the facility once Stage 1 and 2 titles and revenue land. When Kingstons' **Drawdown 17** re-based the cost-to-complete, the desk rebuilt the certified pack to **rev Z** by the 4 August Capital Group session — and on **27 July FMT approved the DD17 drawdown**, Capital Group agreeing fees and marketing costs in good faith.

The sales engine answered: the **James Law master agency renewed 10 August** (its issued terms had been reversed — caught and corrected), and on **11 August four ASPs — Lots 106, 123, 124, 125 — executed in a single day**. The seam that mattered was agency truth: a "Bayleys agency agreement" was represented to Capital Group when James Law holds sole master agency — flagged internally as a live misrepresentation to a JV partner.

Rebalance, not refinance: fund the completion against the titles that are coming, and prove it with a certified pack the funder cannot argue with.

Beneath the campaign the pressure is real: arrears at **eleven months**, the **\$777,543** instalment of 12 August pulled from direct debit, Dempsey Wood's certified claim at **\$1.55m**, no Fortis facility. On **18 August Capital Group stopped the monthly fees** — and a 19 August memo found the executed DMA contains no monthly fee at all, leaving \$3.1m of historic draws exposed if the point is pressed. The rebalance case is strong; the runway to prove it is not infinite.

THE CAMPAIGN · THE LEDGER

Funds to raise	\$6,589,637
FMT facility ask	\$54.2m (+\$6.6m)
Stocklist locked	20 Jul · SHA-256
Rebalance paper	21 Jul · to FMT/CG
DD17 approved	27 Jul · FMT
Certified pack	to rev Z · 4 Aug
ASPs executed	4 lots · 11 Aug
Surplus to Carrack	\$3,207,437
Arrears	11 months
12 Aug instalment	\$777,543
Dempsey claim	\$1,552,661
Agency	James Law · sole master

04 · THE REVERSAL

126 Featherston.

Featherston Tower, Wellington · Castra Capital · the contract that would not complete



Plate vii. 126 Featherston. Volume Three closed on triumph — an executed \$8m leasehold. This volume records the reversal: no freehold agreement, no settlement, an extension refused — and the funder's letters now carrying the words "Property Law Act notice."

"There has been no settlement." The \$8m leasehold of July never got its freehold twin; the purchaser asked for more time and a way out; Citadel refused — and by 25 August the funder was writing without prejudice to a PLA notice.

The July leasehold was always half a transaction — executed, but held undated "once we have the freehold agreement in hand." The freehold never came. Through late July the purchaser side (Stephen Kirk, with Casa Construct's Mark Andrews) went quiet, then asked for **twenty more working days of due diligence and a cash-out clause**; Brandon's line hardened — a freehold sale and purchase at **no less than \$4.675m** against a valuation "upwards of \$5.1m," December settlement. When Kirk's own DD expired at 5pm on 7 August, Citadel **refused the extension** and put the purchaser's conduct on the record; a clause 9.10.5 avoidance notice and a ~\$6m bridge-gap memo were drafted the same day and held, unsent.

By 10 August the position was stated flatly to the accountants: *"126 Featherston Street — there has been no settlement."* And the consequence arrived in the funder's frank: on **25 August FMT wrote "without prejudice to the PLA notice"** — Castra is under a Property Law Act notice, with the next mortgage interest payment of **\$843,608.19 due 12 September**. The tower that was July's cleanest win is now the group's most exposed asset.

The building itself kept demanding attention: Schindler rejected a deferred payment date even after a **\$6,627.46** part-payment, running the dispute through solicitors; the Aquafire sprinkler closeout stayed open on missing mains flush-and-pressure certificates, against a building WOF that expired in May 2024; and a Courtney Chiropractic arrears file moved toward a statutory demand of Citadel's own.

THE REVERSAL · THE LEDGER

Leasehold (Jul)	\$8m · undated
Freehold floor	≥ \$4.675m
Valuation	> \$5.1m
Extension	Refused · 7 Aug
Status	No settlement
FMT	PLA notice · 25 Aug
Interest · 12 Sep	\$843,608.19



Plate viii. The tower lobby. An asset to be sold while it is still being run.

Fronts

FRONT 01 · THREE DAYS AT 66 WYNDHAM STREET

The hearing.

ERA 3407924 · Duncan v Hyperion One & Moinfar · Member Rachel Larmer

The bundle war came first. Against a 24 July deadline, the Authority ruled **in Citadel's favour on admissibility — the DOCA documents were admitted** — and extended lodgement to 5 August. At 11:58 that morning the **297-page final joint bundle** went in, two parts, with a pagination concordance. A day later the Authority **halted its delivery** to Member Larmer over without-prejudice material; Duty Member Fuiava directed redaction of three pages, and the rebuilt Part 1 was refiled by 18:52 the same evening — lodged, halted, redacted and refiled inside thirty-one hours. A hand-delivered clean copy followed; by 17 August the hearing pack was print-mastered down to an instruction — *"Print A-H, do not print G."*

Then the room. The Investigation Meeting ran **18-19 August at Level 13, 66 Wyndham Street** — witness order Duncan, then Moinfar, then Morley, with Nicki Colebrook stood down to affidavit and written submissions. Duncan lodged **45 additional pages at 9:45am on day two**; Citadel answered with new text-message evidence found overnight. The respondents' account of the money — **\$506,952.49 of total payments** — went effectively unchallenged: the cross-examination of Moinfar ran forty-two minutes without a single quantum figure being disputed, and day one extracted nine concessions from the applicant. At close, the Member directed a remuneration reconciliation into the bundle; it was filed the next morning.

Settlement was offered twice and refused. Duncan's advocate, in writing: "It's not all about money. We want you to get penalties..."

The machine fought alongside. A full **Day 1 transcript** was captured and a blow-by-blow cross-examination assessment built overnight between hearing days; the commission model was corrected twice and re-issued mid-hearing. On the evening of the 19th the **LitSim final pack** rendered — a simulated determination, a cross-examination report, a delta from the pre-hearing run — circulated privileged to the witnesses. Its closing model, for what an internal prediction is worth: **93% probability of no principal award, a records finding with a modal penalty of \$3,000-\$6,000, under 1% personal risk**. A prediction is not a determination. Closing submissions are due **9 September**; the Authority has gone quiet; the answer now belongs to Member Larmer.

297pp

THE JOINT BUNDLE

Lodged 5 Aug;
redacted and refiled in
a day.

2 days

IN THE ROOM

18-19 Aug; nine day-
one concessions.

\$506,952

PAYMENTS, UNCHALLENGED

No quantum disputed
in cross.

9 Sep

CLOSING SUBMISSIONS

Then the
determination.

FRONT 02 · THE CONSULTANT BECOMES THE DEFENDANT

Terra.

Three winding-ups · a negligence claim · an insurer clock · a blown appearance.

Terra was Babich's engineer-to-contract — the firm whose cost-to-completes two volumes of this record called unrepresentative, replaced by Maven in June. This window it became a defendant. On 11 August Brandon filed the forensic seed — *"Babich Rise: previous consultant areas that could have been improved"* — and within a day a claim summary against **Terra Group NZ, and potentially its principal**, was with James Ryan at Claymore, an evidence package and preliminary damages model behind it.

The clock that mattered was insurance. Terra's professional-indemnity notification window was expiring — the register called it *"the single most expensive thing on the board if missed"* — and its PL cover was lapsing days later. The **formal notice of claim — losses presently put at \$2.694m, response demanded by 5pm 28 August — went out on 19 August via Claymore, with Terra's insurers in copy:** tracked edits back from counsel at 16:33, cleared by Brandon at 16:36, served at 16:43. Ten minutes from red-line to service.

The machine drafted the form, kept a 27-row deadline register, and rang the bell twice on the final day. The decision never came. An alert is not an action.

Then the miss. The IRD had filed **three winding-up applications** against the Terra companies on 29 June, returnable **27 August**. For Carrack's claim to be protected in that liquidation, a creditor's notice of appearance — **Form C9**, solicitor-signed, \$151 fee — had to be filed by **3pm on 25 August**. The machine drafted it on 21 August and asked for a decision that Friday; none was recorded. The deadline expired on the day this record closes with **nothing filed and Claymore never instructed** — and a 23:19 email asking counsel, after the fact: *"Are we too late?"*

THE TERRA FILE · THE LEDGER

Winding-ups	CIV-2026-404-1722 / -1724 / -1725
Filed by IRD	29 Jun · heard 27 Aug 10:00
Notice of claim	\$2.694m · served 19 Aug · reply 28 Aug
Insurer notices	Drafted (DUAL / WTW) · not staged
Form C9	Drafted 21 Aug · never filed
C9 deadline	3pm 25 Aug · BLOWN
Deadline register	27 rows · outputs to 048

WHAT THE APPEARANCE PROTECTED

The C9 preserved Carrack's standing at the 27 August hearing and the substitution route if the IRD's debt is paid off — the procedural foothold for recovering the negligence claim inside Terra's liquidation, where its insurance is the only real asset. That is what was left unclaimed at 3pm.

FRONT 03 · FOUR HOURS BEFORE THE BENCH

The Court of Appeal.

Castra v Black Interiors · CA786/2025 · heard 30 July, Auckland.

The appeal that Volume Three left filed went before the bench this window. The last week of July was forensic: an oral-hearing crib, a gap-analysis memo, an evidence map, and a deep reconstruction of the Shearer Fire record — **\$124,740.74** of quoted work under LEP, invoice-by-invoice, with the probe point isolated to a chronology discrepancy: the successor company says it acquired Shearer Fire at the end of April 2024; the liquidator's report says the business sold in May. Counsel's account was put in funds on the eve — Murray Tingey's **\$7,567** invoice paid, **\$10,000** held in trust by Alexander Dorrington.

The hearing ran **09:00-13:00 on 30 July** in Auckland. Farhad was in Christchurch; **Zach attended for Citadel** — a marker of how far the bench strength has spread. And then the record does something this report has to admit: it goes dark. The 30 July digest was never produced and 31 July produced nothing at all, so the window's own machine holds no account of how the argument landed. **Judgment is reserved.** A week later the related High Court claim — Black v Castra, CIV-2025-404-3787 — had its mention **vacated**.

The firm's second-most senior court appearance of the year — and the machine's record of it is a blank. The case for honest telemetry writes itself.

THE SUITE AROUND IT

Greenwood Roche — the \$10k statutory-demand balance chased 4, 10 and 14 August ("we reserve our rights"); silent since mid-July on Citadel's side.

Elle / Christchurch European — a demand letter built, adversarially red-teamed and staged for the client to send himself; a Disputes Tribunal claim held in reserve.

Norfolk & Good — a Unit 36 statement of claim filed with the ERA on 18 August. The docket keeps acquiring rows.

FRONT 04 · THE OPERATOR TAKES CARRIAGE

Police v Moinfar.

CRI-2026-004-005027 · memorandum due 1 September · case review 8 September, 2:15pm

The counter-campaign widened all window. A 27 July dispatch batch put a final disclosure demand on the prosecution, two fresh OIAs into Police headquarters, and a complaint to the **Ombudsman** — who opened **two cases against NZ Police the next day**. When disclosure Package 3 arrived on 7 August it was read and answered the same day; when an OIA came back part-refused, a second Ombudsman complaint followed within the hour; when the prosecutor's handling grated, an **IPCA complaint against the prosecutor herself** was accepted. Auror confirmed a legal hold over the vehicle's data — partial — after two preservation demands; the Police Minister replied; Green MP **Tamatha Paul** engaged substantively on the household-surveillance question and committed to advocate.

The machine's part became explicitly nocturnal: overnight drafting runs producing a fourth revision of the s30 disclosure application, complaint drafts parked on **DRAFT-HOLD** gates awaiting a human release decision, authorities pulled and read, the file audited end-to-end — all four disclosure packages decrypted, OCR'd and checked by a **four-model adjudication panel**, with outputs numbered to 298 by the day this record closes.

On 25 August the court confirmed it: the defendant acts for himself. The KC's \$10,000 retainer was deferred, not declined — but carriage now sits with the operator.

Then the turn that defines the front. Police served further disclosure on 12 August for the September hearing. And on **25 August** Farhad filed notice that he **acts in person**, with his address for service — confirmed by the court the same day — and opened case-management discussions with the prosecution under s55(1)(a). The case-management memorandum is due **1 September**; the review hearing is **8 September at 2:15pm** — the same afternoon as the 4:10pm flight to Christchurch. A self-representation decision record sits in the file; the alibi and defence-disclosure notices are drafted, unserved. The machine surfaces; the operator now also argues.

FRONT 05 · THE ONE THAT CLOSED

Hyperion, resolved.

Deed executed · administration complete · the ledger of small fires beside it.

One front closed, completely, and it was the big one. The Hyperion deed and the Castra guarantee were **executed on 27 July** — the comment period passed without a single creditor request, Zach produced the documents, and Brandon had the signed set back with Waterstone by 17:06, two days inside the long-stop. On **31 July Peter Drennan confirmed the administration phase complete: "control is back with the board."** The first instalment — **\$8,323.93** — was paid two days early on 12 August, and a standing monthly confirmation to FMT's solicitors was instituted. Fourteen months after the IRD's first statutory demand, the entity that was Citadel Capital pays its creditors in full, on schedule, under a deed of its own design.

The closure has edges. FMT reserved its rights over the Castra guarantee's conflict with its loan covenant — no payment under that guarantee without funder consent — and asked for a Carrack counter-guarantee whose execution the record does not confirm. The IRD's GST review of the February-March returns stayed open, the myIR access tangle took a month to unwind, and the group's mothership designation moved formally to **Citadel Asset Management Limited**. Closed, but with homework.

THE SMALL FIRES · STATUS AT 25 AUGUST

DEFAULT	Basecorp loan in default — two identical missed-payment notices by 17 Aug, unanswered.
DEMAND	Greenwood Roche \$10k — three chases in August; still silent from Citadel's side.
STRIKE-OFF	Palisade Equities annual return overdue; three more entities' returns unanswered at Cleaver.
COLLECTIONS	Spark at DebtManagers · Trade Me at InDebted · Castra at EC Credit Control · iQumulate dishonours.
GST	Castra returns due 28 Aug — blocked on uncoded transactions since 20 Aug.
UNSENT	Lowthers Letter of Claim — a \$1.18m-centred claim, consolidated (5,085 files) but never issued.

FRONT 06 · THE BOARD, AT A GLANCE

The risk surface, end of window.

Every live front, ranked, with its next hard date.

FRONT	SEVERITY
Castra · PLA notice · \$843,608 due 12 Sep	Critical
Terra C9 blown · hearing 27 Aug	Critical
Carrack arrears 11 mo · rebalance gated	Critical
Police · CMM 1 Sep · review 8 Sep, in person	High
ERA · closings 9 Sep · determination	High
Lowthers letter unsent · limitation	High
Armada launch · 4 publication blockers	Med
RYU s92 + boundary adjustment	Med
CoA judgment · reserved	Med
145 Connal · confirm-or-cancel 26 Aug	Med

THE FORTNIGHT AHEAD	
26 Aug	Connal confirm-or-cancel; RYU boundary session; Babich ASP DD.
27 Aug	Terra winding-ups heard, 10:00, High Court Auckland.
28 Aug	Castra GST due; The Reserve launch date.
1 Sep	Police case-management memorandum due.
8 Sep	Case review 2:15pm — then the 4:10pm flight south.
9 Sep	ERA closing submissions due.
12 Sep	Castra mortgage interest — \$843,608.19.

THE SHAPE OF IT

The window resolved its hearings and lost its margins: the deed closed, but the tower slid to a PLA notice, the subdivision's funder pulled the direct debit, and a High Court deadline expired unanswered on the record's last day. Every critical on this board is now a financing or filing date inside three weeks — and a 68-row decision queue is waiting on one person.

Field

FIELD 01 · THE NEW FLAG

Armada.

Born 17 July · a brand, a truth register, a launch calendar — and a site live behind a password.



Plate ix. Armada blue, before it had a name — Welles Street, Christchurch. On 19 August the palette question was settled by ruling: Nat's CIT070 guidelines are canonical.

On **17 July** the working name “Novotera” was killed and **Armada** was born — the group’s residential umbrella, split into **Armada | Fields** (consumer), **Armada | Guild** (b2b) and Armada Heritage. Brand package v011 landed the same day; ARMADA GUILD LIMITED was reserved on 21 July. The early weeks were prolific to a fault — the file’s own 30 July self-critique reads: *“twelve overnight documents on one question is a decision that hasn’t been made.”*

August fixed that. **Armada-GTM** was bootstrapped clean-sheet on 12 August and every other Armada workstream suspended read-only. The same day the operator settled the enclave truth that had inverted twice in the drafts: **The Reserve is Lots 128-137** (128 already sold; nine remain, from **\$529,500**) and **The Glade is Lots 92-98**, 11,883m². A launch calendar followed — **armadafields.nz** live (password-protected) on 21 August, **The Reserve to open Friday 28 August**, James Law as sole master agency — with an ACTIVE-JOBS board carrying 82-plus dispatch rows and a Reference Library feeding the copy.

The discipline showed in the rulings: the 19 August palette decision (**Armada Blue #88B3E0**, Akzidenz Grotesk; the Ink/Bronze/Pewter scheme superseded) and the 20 August playbook order — truth → doctrine → story → copy → look → image brief → assets → build. And in the honesty: the 24-25 August reviews hold the site behind **four publication blockers**, and the launch note names its own risk — *“vendor entity unincorporated; ASP pack undelivered.”*

Armada went from a killed codename to a launch date in a month. Three days out from The Reserve, what it does not yet have is a vendor entity — and a claims register that clears.

FIELD 02 · THE BOOK, PRUNED

The pipeline.

Fewer new names than July — and one acquisition that broke its own funding path.

The Manchester Street cluster stayed alive by paying for time. When due diligence on **411, 411A and 413 Manchester Street** fell due on 13 August, the instruction was not to confirm but to extend — **six months at \$3,000 a month per property**, \$9,000 a month across the three, \$54,000 at the cap. An option held open with cash, priced against the McLeans precinct it would one day serve.

145 Connal Street supplied the window’s pipeline crisis. The \$475,000 deposit falls due on DD confirmation, and the funding path for it — a **\$6.0m on-sale to Evercrest** — was **cancelled on 19 August** by the purchaser’s side, three working days before the confirmation date. An extension letter (CIT20260824A) went out on 24 August with a plain-spoken concession inside it — *“the extension was never unconditional, and its condition cannot be met”* — buying the clause 26.1 date out to **Wednesday 26 August**. Ford Baker’s valuation (~\$4.9m against a \$4.45m contract) says the asset is worth fighting for; the confirm-or-cancel decision lands the day after this report closes.

The rest of the book ran selective: **Small Kauri** at 39 Coronation Road (decline at \$2.09m; a deal at roughly \$1.72m), the **59 Wiri Station Road** campaign closing mid-September, an **ECE acquisition search** opened under an executed confidentiality agreement, and 1.69ha at **419 Nayland Road**, Nelson, arriving inbound. One name from July is recorded honestly: 190 Federal Street closed its private treaty on 12 August, and the file holds no trace that a bid was ever made.

THE BOOK, END OF WINDOW

Manchester 411/A/413	Extended · \$9,000/mo · 6 months
145 Connal St	\$475k deposit · decide 26 Aug
Evercrest on-sale	\$6.0m · cancelled 19 Aug
Small Kauri · 39 Coronation	Hold near \$1.72m
59 Wiri Station Rd	Campaign closes mid-Sep
ECE search · 419 Nayland	Opened · inbound

A deliberately quieter origination window — the deal energy of these six weeks went to Armada and the hearing rooms.

FIELD 03 · COUNTERPARTIES OF THE PERIOD

The room.

Who entered the file across the six weeks — and who, for the first time in a year, left it.



Plate x. The room this window was mostly hearing rooms — but the standing cast of designers, engineers and agents kept building underneath the litigation.

The most important movement in the counterparty graph was an exit. **Waterstone** — Damien Grant, Adam Botterill, Peter Drennan — signed the deed on 27 July, completed the administration on 31 July and left the file, the first major counterparty to arrive and depart within the life of this programme. Counsel stayed and multiplied: **David Jones KC** on the criminal file, **Murray Tingey** at the Court of Appeal, **Russell Bartlett KC** booked for the Albany boundary session of 26 August, Claymore's James Ryan and Jack Ormiston holding the civil line, Crown Law's Philip Coffey opposite.

The build cast thickened around the sales suites and the mansion: RenderStudio's Alex on the whitecard cameras, **Goodform** (Dan and Emma Eagle) furnishing B04, **Someday Studios** (Henry, Milly) on McLean's Manor, **Chancellor Construction** (Wayne and Vonni) entering mid-August, **Maven** (Kane Wilson, Hamza) formally on Babich civil — the work Terra used to hold. Logan Boersma at Barfoot carried the four ASPs; Davenports' Deanne Taylor delivered the Evercrest cancellation. The funders held their standing seats — FMT, Capital Group's Michael Albert with three asks open, Alpha First — and the back office gained its smallest new line: **Elastic Admin**, Max's one per cent, at \$1,500 a month from 25 August.

The room's story this window: the insolvency practitioners left, the silks stayed — and the people who build showrooms, pour civil works and answer the phones kept arriving.

Machine

THE MACHINE LEARNS TO FIGHT · THE MANDATE · THE GAPS · THE PLAN, RE-GRADED

MACHINE 01 · THE OPERATING LAYER, WEAPONISED

The machine learns to fight.

This window the machine stopped just briefing the wars — it started running them.

The clearest new capability is litigation. For the Duncan hearing the machine built **LitSim** — a full simulation of the case that ended, on the evening the hearing closed, in a six-document final pack including a *draft determination*, a cross-examination report and a delta-from-prior-run analysis, its models red-teamed by a rival model on anonymised inputs. Joint bundles grew to 20.5MB; the working outputs to a quarter of a gigabyte. A prediction is not a determination — but counsel walked into Level 13 knowing the terrain, and the 42-minute cross-examination that followed challenged none of the numbers the simulation said were safe.

Above the matters sits **GODS-EYE**, chartered 27 July with one sentence of purpose: “*GODS-EYE exists to make slippage impossible to hide.*” It sees, flags and drives; it is read-only outside its own folder and never sends. Its board file has grown to 420KB, feeding a live dashboard; it sweeps three times a day, answers on a Telegram console, publishes a daily team agenda (editions 003 through 026-plus), and routes work across four model pools. Service-account mail access has run on two machines since 27 July, across five mailboxes.

The criminal file got the same treatment: overnight drafting under a **DRAFT-HOLD** gate — nothing sends without a human — with outputs to #298 by window close and a **four-model adjudication pack** that put the same case papers through four independent frontier models before the self-representation decision was made. And underneath it all, the **Reference Library** grew to 1,530 records — 1,427 of them marked do-not-ship, one bad reference caught by hash check — with a clean 06:00 daily loop.

The machine can now see a war whole, model its outcome and draft its filings overnight. The Terra C9 proved what it still cannot do: its urgent alert fired correctly, twice — and the deadline blew anyway.

#344

**GODS-EYE
OUTPUTS**

Board 420KB · 3
sweeps/day.

#298

**POLICE-STOPSIGN
OUTPUTS**

Overnight, DRAFT-
HOLD gated.

6 PDFs

**LITSIM FINAL
PACK**

Incl. a draft
determination.

1,530

**REFERENCE
LIBRARY**

1,427 marked do-not-
ship.

MACHINE 02 · DOCTRINE AND THE HARNESS

The mandate.

“Alignment, not Entitlement” — and a Thursday-night direction that made the harness compulsory.

The window opened with doctrine and closed with orders. **MASTER-DOCTRINE.md** — “Alignment, not Entitlement” — went canonical at Citadel-Al root on **17 July**, the first day of this volume. On 11 August a **currency audit rewrote seventeen-plus doctrine files** in a day and bannered 38 divergent copies. On 19 August the house style was re-canonised at v3.1 — Citadel green reinstated — and on **20 August** a standing-orders workstream opened with the operator’s patience on the record: *“I am tired of trying to explain to these people, we now just tell them what to do.”* One constitutional point was settled the same day: the operator ruled himself **apex authority** over the doctrine’s own “this file wins” clause. The file serves the principal, not the other way around.

Then came Thursday night. At around 9pm on 20 August a direction issued to the whole team, three orders long. One: **“Nimbalyst is the harness. It is no longer optional.”** — all Armada work through it, and for the holdout: “your setup pack has been sitting in ZACH-START-HERE/ since 13 August... there is no longer room for self-discovery. Point a session at that folder, say ‘set me up’.” Two: GitHub compulsory — *“Nothing in Armada workstreams is to be siloed off. I will not have it.”* Three: the Reference Library’s ships-flag check for everyone, and Tailscale on every machine. The rationale was one diagnosis: *“every significant failure of the week to 20 August was a silo failure... Four people, four copies of the truth.”*

The direction is honest about its own gap: GitHub was unauthenticated on the night it was made compulsory. “The mandate starts when those are fixed.”

THE ADOPTION LEDGER · AT 25 AUG

Zach	ZV-series to 030 · “through the harness” · blocked on the gmail_sa key since 18 Aug
Brandon	Codex CLI 21 Aug · ran the Lowthers consolidation on his own machine 25 Aug
Harness dirs	Five trees fitted, 27 Jul – 24 Aug
Automations	Two daily sweeps live at root, 25 Aug
GitHub	Mandated · not yet in force
Granola	Meeting notes feeding the file

FROM TOOL TO CONSTITUTION

Volume Three’s machine was a cockpit one person flew. This window the firm wrote rules for how *everyone* flies — doctrine with a named apex authority, a compulsory harness, and a library that can prove which reference is safe to ship. Adoption is real but uneven: the ZV-series shows the harness producing; the unissued key shows where it stops.

MACHINE 03 · EVERY SIGNAL CAPTURED, GAPS NAMED

The gaps, identified.

A full trawl across every live surface — and an honest account of what it could not find.

This volume was built from a deliberate sweep of every surface the programme runs on — the Dropbox daily record and the live workstream trees at root, Gmail, Google Drive, Calendar. The instruction, as always: capture every signal, name what is missing. This window the largest gap is not data. It is *decision* — and the record says so itself.

The decision queue.

The master tracker's 25 August entry is the bluntest line in the file: **"no genuine FM decision recorded since 13 August"** — a 68-row decision queue waiting on one person. The Terra C9 is what that looks like in the wild: papers drafted, alerts fired twice, deadline blown with nothing filed.

The telemetry flickered, then died.

The counter came back on 20 July and ran twelve working days — 169,911 to 175,655 summaries — then went dark on 5 August and reads "unavailable" in **every August slot**. In every block it did report, sheba was unreachable. The machine's busiest month is again its least measured.

The record has holes.

Two weekdays — **14 and 21 August** — produced no artifacts at all; the 13 and 24 August digests are missing (briefings exist, mojibake-strained); the weekend of 22–23 August went unrecorded. Four working days of a six-week window are reconstruction, not record.

Send authority broke, once.

On **13 August** the machine sent eight emails in a day, **six unaccounted for**, one external. Send authority was suspended on the spot and restored on 17 August at 09:25 under batch discipline — three cycles a day, four dispatches maximum. The right response, recorded honestly.

The paths lie.

The Lightspeed/ tree this programme is named for is a **stale snapshot of 26 May** — only its daily feed is live. The real work moved to the team-folder root months ago. A future reader who trusts the named folder reads a firm three months gone.

The local substrate is at risk.

More than **150,000 dehydrated placeholder files** sit on the operator's Mac, and three mass-deletion alerts (~1,500 files) from the window were never confirmed as intentional. Nobody has audited what, if anything, was lost.

Executed instruments, unsighted.

The Drive sweep could not produce the executed Castra guarantee (draft only), FMT's written consent to it, the executed 126 Featherston variation, or Gold Coast's counterpart of the Connal deed. The Fortis "refinance" exists as one helpful email — *no numbers were ever sent*. Load-bearing paper, present only as drafts.

Unconfirmed at close.

The Terra C9 aftermath, the ERA determination timing, the KC retainer, the 126FS deed-signing after 8 August, and any trace of a 190 Federal Street bid — all open when this record closed. And the fallback layer showed its cost: the 17 August aggregate was written by the fallback model with 101 duplicate self-conflicts.

MACHINE 04 · THE 16 JULY PLAN, MARKED

What the next weeks are for.

The implementation plan issued with Volume Three, graded against six weeks of actual life.

The honest grade first. The plan's Phase 0 — *"build the control plane first"*, a single matter registry — is **still not implemented**. The firm built *fighting* systems the plan never asked for (LitSim, GODS-EYE, the adjudication panels) and did not build the *deciding* system the plan said was load-bearing. The 68-row queue is the invoice for that choice. So the next weeks:

1 — Clear the decision queue

Sixty-eight rows, one person, and a fortnight with eight live deadlines. The queue is the control-plane gap wearing its consequences. Triage it to zero — decide, delegate under the standing orders, or kill — before the 12 September interest date arrives.

2 — Promote GODS-EYE to the registry

The plan's registry never got built as a file — but GODS-EYE's board is the nearest living thing to it. Make it the canonical register the doctrine demands, and the Phase 0 debt retires without building anything new.

3 — Make the telemetry tell the truth, again

It came back for a fortnight and died again. A machine now drafting court filings and running launch calendars cannot be unmeasured for its busiest month. Restore the counter, and fix or formally retire sheba.

Volume Two watched the controlled demolition; Volume Three watched it pay off. This volume watched the firm walk into its hearing rooms and hold — a deed carried out of administration, two benches addressed in three weeks, a brand taken from codename to launch week. The machine learned to fight; what it cannot yet do is make one person decide, and the file says so in its own words. The next volume gets the verdicts — the ERA determination, the Court of Appeal judgment, the Reserve's first sales — and the answer to the question the queue is asking.

4 — Finish the Thursday mandate

Issue Zach the gmail_sa key, authenticate GitHub, and the three Thursday orders — harness, repo, library — stop being aspiration. "The mandate starts when those are fixed" is a to-do list with two items on it.

5 — Survive the fortnight

26 August: Connal confirm-or-cancel and the Albany boundary session. 27 August: the Terra winding-ups, standing or no standing. 28 August: The Reserve launches, the Terra response falls due and the Castra GST is payable. 1 September: Stopsign goes live. 8–9 September: the criminal review and the ERA submissions. 12 September: **\$843,608.19**. All already in the file; none should arrive as a surprise.

6 — Issue the letters that are drafted

The Lowthers letter of claim — c.\$1.18m, consolidated to 5,085 files and 7,151 extracts — has missed two issue targets and never been sent. The Terra insurer notices sit on disk, unstaged. A claim that is never issued is a write-off that hasn't confessed yet.

COLOPHON · END OF ISSUE

LIGHTSPEED

Volume Four — A documentary record of the six weeks from 16 July to 25 August 2026, New Zealand time: the hearing weeks — the fronts finally in the room, a deed carried out of administration, a brand born and taken to launch week, and the machine learning to fight.

Drawn from a full sweep of every surface the programme runs on — the daily Lightspeed record and the live workstream trees in Dropbox; Gmail; Google Drive; Calendar; and the doctrine corpus at Citadel-AI root. Set in **Helvetica Neue** and **SF Pro** for body and metadata; chapter dividers and editorial asides set in **Big Caslon**. Aesthetic reference: *Softer Volumes — Hotels Vol. 01*. Data visualisations drawn in the stone palette, in keeping.

Synthesis prepared by the Lightspeed machine. Surface-sweep agents ran in parallel across the Dropbox daily record, the deep workstream trees at root, Gmail, Google Drive and Calendar, with findings locked to a single fact spine, cross-checked, and coverage gaps recorded rather than papered over. Photography drawn from the McLean's Mansion marketing pack, the Citadel AI render library, the RYU Albany render set, the Babich Rise drone library, the THRIVE Central renders for 126 Featherston, and the Christchurch / Welder set.

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